

37 **Matters not written the jurisdiction of the Tribunal.**- nothing in this Chapter shall confer jurisdiction on any commodity;

- (a) Classification or re-classification of any commodity;
- (b) Fixation of wharfage and demurrage charges (including conditions attached to such charges);
- (c) Fixation of fares levied for the carriage of passengers and freight levied for the carriage of luggage, parcels, railway material and military traffic and
- (d) Fixation of lump sum rates.

Comment

Section 37 lays down the bar on the jurisdiction of Tribunal in certain matters such as classification of a commodity, fixation of wharfage and demurrage charges, fares levied of the carriage of passengers and freight levied for the carriage of passengers and freight levied for the carriage³ of luggage. Etc.

38. Powers of the Tribunal.- (1) The Tribunal shall have the powers of a civil court under the Civil Procedure, 1908^(5 of 1908), for the purposes of taking evidence on oath, enforcing the attendance of witness, compelling the discovery and production of documents, issuing commissions for the examination of witness and of review and shall be deemed to be a Civil Court for all the purpos⁴es of Sec. 195 and Chapter XXXV of the code of Criminal Procedure, 1973 (2 of 1974) and any reference in such section of Chapter to the presiding Officer of a court shall be deemed to include a reference to the Chairman of the Tribunal.

- (3) The Tribunal shall also have power to pass such interim and final orders as the circumstances may require, including orders for the payment of costs.

Comment

Section 38 provides that the Tribunal shall be a Civil Court under the Code of Civil Procedure, 1908; for the purpose of taking evidence on oath, etc., and shall also be deemed to be a civil Court for all the purposes of Sec. 195 and Chapter XXXV of the code of Criminal Procedure. 1973.

39. Reference to the Tribunal.- Notwithstanding anything contained in Sec. 37 the Central Government may make a reference to the Tribunal in respect of any of the matter specified in that section and where any such reference is